

Frontier Artificial Intelligence Officer Certification Act

Research draft v0.2 — 20 August 2026

AN ACT to amend the general business law, in relation to natural-person certification of transparency and reporting obligations applicable to large frontier developers.

THE PEOPLE OF THE STATE OF NEW YORK, REPRESENTED IN SENATE AND ASSEMBLY, DO ENACT AS FOLLOWS:

Section 1. Short title. This act shall be known and may be cited as the “frontier artificial intelligence officer certification act.”

§ 2. Article 44-B of the general business law is amended by adding a new section 1422-a to read as follows:

§ 1422-a. Officer certification.

1. Required submissions.

(a) Before or concurrently with deploying a new frontier model or a substantially modified version of an existing frontier model, a large frontier developer shall submit electronically to the office, in a form prescribed by the office, either:

(i) a written certification that, after reasonable inquiry:

(A) the transparency report required by subdivision three of section fourteen hundred twenty-one of this article is complete and accurate;

(B) the assessments, mitigations, third-party evaluations, and other steps required by the large frontier developer’s frontier AI framework for the decision to deploy were completed or applied; and

(C) the deployment materially complies with the applicable requirements of section fourteen hundred twenty-one of this article and with the large frontier developer’s frontier AI framework; or

(ii) a written acknowledgment identifying each material noncompliance, describing its nature and extent, and providing a remediation plan. An acknowledgment under this subparagraph shall not constitute compliance, validation, authorization to deploy, or a defense to any violation of this article.

(b) Beginning April fifteenth of the calendar year following the first full calendar year after this section takes effect, and annually thereafter, each large frontier developer shall submit either:

(i) a written certification that, during the preceding calendar year, the large frontier developer materially complied with the applicable requirements of sections fourteen hundred twenty-one and fourteen hundred twenty-two of this article and with its frontier AI framework; or

(ii) a written acknowledgment identifying each requirement with which the large frontier developer did not materially comply, describing the nature and extent of the noncompliance, and providing a remediation timeline or confirmation that remediation is complete.

(c) Existing deployments. On the effective date of this section, each large frontier developer that has a frontier model deployed or in extensive internal use, in whole or in part in this state, shall submit for each such model the certification or acknowledgment required by paragraph (a) of this subdivision. For purposes of paragraph (a) of this subdivision, continued deployment or extensive internal use of such a model on or

after the effective date shall be treated as deployment of a new frontier model occurring on the effective date. No liability shall arise under this paragraph for conduct occurring before the effective date.

2. Required signers. Each certification or acknowledgment submitted pursuant to subdivision one of this section shall be signed personally by:

(a) the highest-ranking natural-person executive of the large frontier developer or, if the large frontier developer has no such executive, each natural person exercising the most senior executive or governance authority over the large frontier developer;

(b) where an affiliate exercises ultimate authority to direct the management and policies of the large frontier developer, the highest-ranking natural-person executive of that affiliate or, if such affiliate has no such executive, each natural person exercising the most senior executive or governance authority over that affiliate;

(c) the most senior natural-person officer, other than a signer required by paragraph (a) or (b) of this subdivision, who has direct responsibility for implementation of the large frontier developer's frontier AI framework and authority to prevent the deployment or extensive internal use of a frontier model that does not comply with that framework; and

(d) each natural person, other than a signer required by paragraph (a), (b), or (c) of this subdivision, who, regardless of title, possesses or exercises final material decision authority concerning the deployment or extensive internal use of a frontier model of the large frontier developer through one or more of the following:

(i) deployment, expansion, release, or access decisions;

(ii) budgets, compute, infrastructure, or risk policy materially affecting such deployment or use;

(iii) appointment, removal, direction, or supervision of persons exercising authority described in subparagraph (i) or (ii) of this paragraph; or

(iv) ownership, voting, contractual, governance, trust, or other rights conferring practical power to prevent, halt, restrict, or correct such deployment or use.

For purposes of paragraph (d) of this subdivision, authority may be held or exercised directly or indirectly, individually or in concert with others, and through any affiliate, entity, trust, or arrangement. The following, standing alone or in combination only with each other, do not constitute authority under paragraph (d) of this subdivision: title, office, seniority, or status; professional credentials or technical ability; access to systems, model weights, compute, or infrastructure; the ministerial execution, implementation, or communication of a decision made by another; or the provision of advice, analysis, or recommendation to a person holding decision authority. Authority under paragraph (d) of this subdivision is authority to decide, not merely capacity to act. Substance controls over title.

Where two or more natural persons jointly occupy or exercise the rank or authority described in paragraph (a), (b), or (c) of this subdivision, each such person shall be a required signer. No large frontier developer or affiliate may, through a vacancy, allocation of authority among multiple persons, use of a board or committee, or other form of organization, leave this section without an obligated natural person.

Each signer shall sign in an individual capacity. A signature by an entity, board, committee, representative, or delegate shall not satisfy this subdivision. The duties imposed upon a signer by this section may not be delegated. No appointment of a safety officer, compliance officer, committee, subsidiary, contractor, artificial intelligence system, or other intermediary shall relieve a required signer who retains authority material to a duty imposed by this section.

For purposes of this section, “required signer” means each natural person required to sign pursuant to this subdivision, whether or not the required submission was made.

3. Personal duty of inquiry and response.

(a) Before signing a certification or acknowledgment, each person required to sign under subdivision two of this section shall exercise due care to ensure that a reasonable inquiry has been conducted. The inquiry shall be based upon data and documentation sufficient to determine accurately and demonstrate the matters addressed by the submission.

(b) Employees, advisers, and qualified experts may perform work supporting the inquiry, but a required signer may rely upon their information only where such reliance is reasonable under the circumstances and the signer has no reason to believe that the information is materially false or incomplete. Delegation of supporting work shall not relieve a required signer of the personal duty imposed by this subdivision.

(c) When material noncompliance is identified, or would have been identified through an inquiry satisfying paragraph (a) of this subdivision, each required signer shall exercise due care, using meaningful measures within that signer’s authority individually or in combination with others, to cause prompt remediation and to prevent, halt, or restrict any deployment or extensive internal use to which the noncompliance relates where its continuation would violate this article or the large frontier developer’s frontier AI framework.

(d) Lack of actual knowledge shall not constitute a defense to a violation of this subdivision where the relevant facts would have been disclosed by the reasonable inquiry required by paragraph (a) of this subdivision or by reporting and escalation systems that due care required the signer to establish or maintain. A required signer may not avoid a duty imposed by this section through delegation, deliberate avoidance of material information, or failure to establish reasonable means by which such information would reach the signer.

4. Form and supporting records.

(a) Each certification or acknowledgment submitted under this section shall identify each required signer by name, title, and signing capacity and shall bear the following notice immediately above each signature:

“False statements made herein are punishable as a class A misdemeanor pursuant to section 210.45 of the penal law.”

(b) A large frontier developer shall preserve for five years after submission all data, reports, assessments, communications, schedules, and other documentation materially relied upon in preparing a certification or acknowledgment under this section. The large frontier developer shall also preserve for the same period records sufficient to identify each required signer and the basis upon which that person was or was not treated as a required signer, including organizational charts, delegations of authority, board or committee resolutions, and voting, contractual, governance, or trust arrangements materially relevant to authority described in subdivision two of this section. Such records shall be made available to the office or the attorney general upon lawful request.

From the time a large frontier developer or required signer has notice of a critical safety incident, investigation, lawful preservation demand, or judicial or administrative proceeding to which records described in this paragraph are reasonably relevant, such records shall be preserved until the final conclusion of the incident response, investigation, demand, or proceeding, including any review or appeal, notwithstanding expiration of the five-year period.

(c) The office shall prescribe forms and procedures necessary to implement this section but shall not permit a form, procedure, or electronic submission method to dispense with any required signer or diminish the personal duties imposed by this section.

(d) Each certification or acknowledgment submitted under this section shall be a public record and shall be made available for public inspection and copying. The office may redact only information for which withholding is necessary to protect trade secrets, cybersecurity, public safety, national security, or another interest protected from disclosure by law. The office shall not redact the identity of the large frontier developer; the name or version of the frontier model to which the submission relates; the reporting period; whether the submission is a certification or acknowledgment; the filing date; or any required signer's name, title, signing capacity, attestation, and signature or electronic equivalent.

(e) Within ten business days after receiving a certification or acknowledgment, the office shall publish the public copy on its website and enter it in a searchable public register. The register shall permit the public to identify submissions by large frontier developer, frontier model, required signer, submission type, and filing date. The unredacted submission and supporting records shall remain available to the office and the attorney general and shall be exempt from public disclosure only to the extent permitted by law.

5. Individual enforcement.

(a) The attorney general may bring a civil action against a required signer who violates a duty imposed upon that signer by this section.

(b) A required signer shall not be liable under this section solely because the large frontier developer violated another provision of this article. To establish a violation of subdivision three of this section, the attorney general shall prove that the required signer failed to exercise due care in performing a duty within that signer's authority.

(c) A truthful acknowledgment of noncompliance submitted pursuant to subdivision one of this section shall not, standing alone, establish personal liability. Nothing in this paragraph limits consideration of the facts disclosed, the signer's conduct, or the signer's compliance with subdivision three of this section.

(d) A court may impose upon a required signer found to have violated this section a civil penalty not exceeding two hundred fifty thousand dollars for a first violation and one million dollars for each subsequent violation. In determining the amount, the court shall consider the nature, circumstances, extent, and gravity of the violation; the signer's degree of culpability and authority; any prior violations; efforts to prevent or remediate the violation; and the signer's ability to pay.

6. Personal payment; no indemnification.

(a) A civil penalty imposed upon a required signer pursuant to subdivision five of this section shall be paid by that signer personally. No large frontier developer, affiliate, insurer, employer, or other person shall directly or indirectly pay, reimburse, indemnify, insure, or otherwise satisfy any part of such penalty.

(b) No person shall provide, and no required signer shall solicit, accept, or retain, any increase in compensation, bonus, loan, forgiveness of indebtedness, distribution, gift, or other transfer of value whose purpose or predominant effect is to offset a penalty described in paragraph (a) of this subdivision.

(c) Any agreement or arrangement contrary to this subdivision is void and unenforceable. The attorney general may recover a prohibited payment or transfer from the person providing it or the required signer receiving it. Such recovery shall not reduce or satisfy the required signer's underlying penalty.

(d) This subdivision does not prohibit payment or advancement of reasonable costs of defense. It does not prohibit indemnification of a person upon whom no individual penalty is finally imposed.

(e) This subdivision applies only to a penalty imposed for conduct occurring on or after the effective date of this section.

(f) No liability shall arise under this subdivision solely from entering into an insurance contract or other indemnification arrangement before the effective date of this section or maintaining such a contract or arrangement during the transition period described in this paragraph. Such a contract or arrangement may be maintained only until the earliest of its renewal, expiration, or material amendment, or one year after the effective date of this section. Nothing in this paragraph authorizes any payment, reimbursement, indemnification, insurance benefit, compensation adjustment, or other transfer of value to satisfy or offset a penalty imposed for conduct occurring on or after the effective date of this section.

7. Injunctive relief and disqualification.

(a) In an action brought pursuant to subdivision five of this section, the court may grant appropriate injunctive or other equitable relief, including requiring a compliant submission, requiring remediation of an identified violation, or restraining the deployment or extensive internal use of a frontier model in this state until the requirements of this section are satisfied.

(b) Upon finding that a required signer knowingly violated this section, or committed two or more violations within five years, the court may prohibit that person, for a period not exceeding five years, from serving in an office or exercising authority that would make the person a required signer for a large frontier developer.

(c) A large frontier developer shall not deploy or extensively use a frontier model internally in this state while a person subject to an order under paragraph (b) of this subdivision continues to hold an office or exercise authority that would make that person a required signer.

(d) Before ordering disqualification, the court shall consider the gravity and duration of the violation, the person's degree of culpability and practical authority, efforts to remediate the violation, the likelihood of recurrence, and whether lesser relief would adequately protect the public.

§ 3. Subdivision one of section fourteen hundred twenty-seven of the general business law, as added by chapter ninety-six of the laws of two thousand twenty-six, is amended to read as follows:

1. The attorney general may bring a civil action to recover a civil penalty in an amount not to exceed one million dollars for a first violation and in an amount not to exceed three million dollars per subsequent violation, determined based on the severity of the violation, where a large frontier developer fails to publish or transmit a compliant document required to be published or transmitted under this article, makes a statement in violation of subdivision four of section fourteen hundred twenty-one of this article, fails to report an incident as required by section fourteen hundred twenty-two of this article, fails to submit a certification or acknowledgment required by section fourteen hundred twenty-two-a of this article, otherwise violates a duty imposed upon the large frontier developer by such section, or fails to comply with its own frontier AI framework.

A penalty imposed upon a large frontier developer pursuant to this subdivision shall be separate from, and shall not satisfy or reduce, any penalty imposed upon a required signer pursuant to section fourteen hundred twenty-two-a of this article.

§ 4. Severability. If any clause, sentence, paragraph, subdivision, section, or part of this act shall be adjudged by a court of competent jurisdiction to be invalid, such judgment shall not affect, impair, or invalidate the remainder thereof, but shall be confined in its operation to the clause, sentence, paragraph, subdivision, section, or part directly involved in the controversy in which such judgment shall have been rendered.

§ 5. Effective date. This act shall take effect on the one hundred eightieth day after it shall have become a law. Effective immediately, the addition, amendment, or repeal of any rule or regulation necessary for the implementation of this act on its effective date is authorized to be made and completed on or before such effective date.